

DropshipGuru

Terms & Conditions

Governing the use of DropshipGuru's services

TERMS & CONDITIONS

These Terms & Conditions ("Terms") constitute a legally binding agreement between DropshipGuru ("the Company," "we," "us," or "our") and any individual or entity ("Client," "User," or "you") who accesses our website, purchases a service, or otherwise engages with DropshipGuru in connection with any of our digital business services.

1.1 Company Information

DropshipGuru is a service provider engaged in offering digital e-commerce and business-support services to clients in India and internationally, including but not limited to seller account setup on platforms such as Amazon.in, Amazon.com, Flipkart, and Meesho; Shopify store setup; e-commerce website development; product listing and research; store management; digital marketing consultation; WhatsApp Business setup; social media services; webinars and training; business consultation; account management; branding services; digital downloads; AI-assisted services; and CRM/automation services.

1.2 Eligibility

By using our services, you represent and warrant that:

- You are at least 18 years of age, or are availing the services through a parent or legal guardian who agrees to be bound by these Terms;
- You have the legal capacity and authority to enter into a binding contract;
- You possess valid identification, business registration documents (where applicable), and any licenses required to operate an e-commerce business under Indian law;
- All information you provide to us is accurate, current, and complete.

We reserve the right to refuse service to any person or entity that does not meet these eligibility criteria, or where we reasonably suspect the information provided is false or misleading.

1.3 Acceptance of Terms

By making a payment, signing a service agreement, communicating an order via WhatsApp, email, or any other channel, or otherwise instructing us to begin work, you confirm that you have read, understood, and agreed to be bound by these Terms, our Privacy Policy, Refund & Cancellation Policy, and any service-specific agreement applicable to your order. If you do not agree with any part of these Terms, you must not avail of our services.

1.4 Services Offered

DropshipGuru offers digital services that may include, without limitation:

- Amazon.in and Amazon.com Seller Account Setup
- Flipkart Seller Account Setup
- Meesho Seller Account Setup
- Shopify Store Setup and E-commerce Website Development
- Product Listing and Product Research
- Store Management and Account Management
- Digital Marketing Consultation and Social Media Services
- WhatsApp Business Setup
- Webinar Registration, Online Training, and Recorded Content
- Business Consultation and Branding Services
- Digital Downloads
- AI-assisted services, where applicable
- CRM and Automation Services
- Any other digital business service we may introduce from time to time

The specific scope, deliverables, timeline, and fee for any engagement will be communicated at the time of order confirmation (“Order Confirmation”), whether through an invoice, WhatsApp message, email, written quotation, or service agreement. In case of any conflict between these Terms and an Order Confirmation, the specific terms of the Order Confirmation shall prevail only to the extent of that specific engagement.

Example – Annual Seller Support Package: Where a Client purchases an annual package (for instance, the ₹4,000/year package covering account creation, product listing, and dispatch-related support), the specific inclusions, exclusions, and duration of that package will be set out in the Order Confirmation. Such a package is a service-support arrangement and does not guarantee account approval, sales volume, or business outcomes (see Section 1.9 – No Guaranteed Results).

1.5 User Responsibilities

As a condition of receiving our services, you agree to:

- Provide accurate, complete, and timely information, documents, and access credentials reasonably required for us to perform the service (including but not limited to PAN, GST certificate, bank details, identity proof, business address proof, and product information);
- Cooperate in good faith and respond to our communications within a reasonable time, as delays on your part may delay deliverables;
- Use the services only for lawful purposes and in compliance with the terms of service of any third-party platform involved (Amazon, Flipkart, Meesho, Shopify, Meta, Google, payment gateways, etc.);

- Not request or instruct us to engage in any activity that violates Indian law or the policies of a third-party platform, including but not limited to listing prohibited or counterfeit products, providing false KYC information, or manipulating reviews/ratings;
- Maintain the confidentiality of any login credentials, OTPs, or account access shared with us during the course of service delivery;
- Make payments in accordance with the agreed Payment Terms (Section 1.6).

Consequences of Non-Cooperation: If you fail to provide necessary documents, information, or approvals within the timeframe communicated to you, we reserve the right to pause, delay, or treat the engagement as abandoned, without this being treated as a failure of service on our part, and without entitlement to a refund for work already performed (see Refund & Cancellation Policy).

1.6 Account Creation (Client Accounts with DropshipGuru)

Where our services require you to create an account with us (for tracking orders, accessing training content, or communicating with our team), you are responsible for maintaining the confidentiality of your login credentials and for all activities that occur under your account. You must notify us immediately of any unauthorized use of your account.

1.7 Account Suspension and Right to Reject Service

We reserve the right, at our sole discretion, to suspend, restrict, or terminate access to our services, or to decline an engagement altogether, in circumstances including but not limited to:

- Provision of false, misleading, or incomplete information or documents;
- Suspected fraud, misuse, or abuse of our services;
- Non-payment, late payment, or a reversed/disputed payment (chargeback);
- Use of our services for any unlawful purpose or in a manner that violates third-party platform policies;
- Abusive, threatening, or harassing conduct towards our staff;
- Any conduct that we reasonably believe exposes the Company to legal, financial, or reputational risk.

Where we decline or terminate an engagement under this clause, the Refund & Cancellation Policy shall determine whether any refund is due, and in cases involving fraud or misuse by the Client, no refund shall be due.

1.8 Payment Terms, Pricing Changes, and Taxes

1.8.1 Payment Structure

Our services are generally offered on an advance-payment basis, meaning the applicable fee is payable in full before we commence work, unless otherwise agreed in writing for a specific engagement (for example, milestone-based payment for larger custom website projects). For package-based services such as our annual seller-support package, the full package fee is payable in advance for the entire duration of the package.

1.8.2 Pricing Changes

Prices for our services may change from time to time without prior notice, and such changes will not affect an engagement for which payment has already been received and an Order Confirmation issued. Renewal of an annual or recurring package at the end of its term will be subject to the pricing applicable at the time of renewal.

1.8.3 Taxes and GST

All fees quoted are exclusive of applicable taxes unless expressly stated otherwise. Goods and Services Tax (GST) and any other statutory levy applicable under Indian law will be charged additionally at the prevailing rate and reflected in the invoice. DropshipGuru is a GST-registered entity and will issue GST-compliant invoices for services rendered.

1.8.4 Chargebacks, Non-Payment, and Late Payment

Initiating a chargeback or payment dispute without first raising the issue with us directly is treated as a material breach of these Terms and may result in immediate suspension of services, in addition to any other remedy available to us under law, including recovery of the disputed amount and associated costs. Late or non-payment of any installment (where applicable) may result in suspension of work until payment is regularized.

1.9 No Guaranteed Results

Important: DropshipGuru provides professional setup, listing, consultation, and support services. We do not guarantee, and no representation by any employee, agent, or representative of DropshipGuru should be construed as guaranteeing:

- Any specific level of income, profit, revenue, or sales;
- Approval of a seller account by Amazon, Flipkart, Meesho, or any other third-party platform;
- Continued, uninterrupted access to any third-party platform once an account is created;
- The success or growth of your business;
- Any specific outcome from digital marketing, social media, or branding services;
- The performance of any third-party algorithm, advertising system, or marketplace ranking mechanism.

Outcomes in e-commerce and digital business depend on numerous factors outside our control, including platform policies, market competition, product quality, pricing, consumer demand, and macroeconomic conditions. You acknowledge that engaging our services is undertaken with an understanding of these inherent business risks.

1.10 Project Timelines and Communication Policy

Estimated timelines communicated to you for any deliverable are good-faith estimates and not guaranteed delivery dates, as they depend on factors including your timely provision of information/documents and the responsiveness of third-party platforms (e.g., the time Amazon or Flipkart takes to approve a seller account, which is entirely outside our control). We will communicate with you primarily through the channel(s) agreed at onboarding (WhatsApp, email, or phone) and aim to respond to queries within a reasonable business timeframe.

1.11 Third-Party Platforms

Many of our services involve creating or managing accounts on third-party platforms, including Amazon, Flipkart, Meesho, Shopify, Meta (Facebook/Instagram), Google, and various payment gateways. You acknowledge and agree that:

- These platforms are independent entities not owned, controlled, or affiliated with DropshipGuru;
- Each platform has its own terms of service, eligibility criteria, fees, and approval processes that are subject to change at any time without notice to us;
- We have no control over, and bear no responsibility for, a platform's decision to approve, reject, suspend, restrict, or terminate any account, listing, or seller profile;
- Any fees charged directly by these third-party platforms (referral fees, subscription fees, advertising spend, payment gateway charges, etc.) are separate from and in addition to our service fees, and are your sole responsibility;
- Changes to a third-party platform's policies, algorithms, or terms of service after our service has been delivered do not constitute a deficiency in our service and do not entitle you to a refund.

1.12 Document Verification, KYC, and False Information

Several of our services (particularly seller account setup) require submission of identity and business documents to third-party platforms as part of statutory Know Your Customer (KYC) and onboarding requirements. You represent that all documents and information provided to us for this purpose are genuine, current, and lawfully obtained. Submission of forged, fraudulent, or materially false documents:

- Is solely your responsibility and liability;
- May result in immediate termination of our engagement without refund;
- May expose you to independent legal consequences under Indian law, for which DropshipGuru shall bear no liability whatsoever.

1.13 Intellectual Property

1.13.1 Our Intellectual Property

All content created by DropshipGuru in the course of providing services — including but not limited to training materials, webinar recordings, templates, branding frameworks, proprietary processes, website text, graphics, and software tools — remains the intellectual property of DropshipGuru unless explicitly transferred to the Client in writing as part of a custom deliverable (for example, a website or logo developed specifically for the Client under a paid custom project).

1.13.2 Client Intellectual Property

Any logos, trademarks, product images, content, or brand assets you provide to us remain your property. You grant DropshipGuru a limited, non-exclusive license to use such materials solely for the purpose of delivering the agreed service (e.g., uploading product images to a marketplace listing).

1.13.3 Copyright and Trademark Compliance

You warrant that any content, product, brand name, or image you instruct us to upload or use does not infringe any third party's copyright, trademark, or other intellectual property rights. You agree to indemnify DropshipGuru against any claim arising from such infringement (see Indemnification, Section 1.22).

1.13.4 AI-Generated Content

Where any service involves AI-assisted content generation (such as AI-written product descriptions, marketing copy, or design suggestions), such content is provided as a starting point or productivity aid. You are responsible for reviewing AI-generated content for accuracy, originality, and compliance with platform policies and applicable law before publishing it. DropshipGuru does not warrant that AI-generated content is free of errors or is fit for a specific regulatory or platform requirement.

1.14 Confidential Information

Each party agrees to keep confidential any non-public business, financial, or technical information disclosed by the other party in connection with the services, and to use such information solely for the purpose of the engagement. This obligation survives termination of the engagement. Further detail is set out in the Confidentiality Clause (Section 19).

1.15 Data Usage, Privacy, and Cookies

Our collection and use of your personal data, and our use of cookies on our website, are governed by our Privacy Policy and Cookie Policy, which form part of these Terms by reference.

1.16 Website Downtime, Maintenance, and Technical Issues

We strive to keep our website and related digital tools available at all times but do not guarantee uninterrupted, error-free, or secure access. We are not liable for any loss arising from website downtime, scheduled maintenance, software bugs, or technical issues beyond our reasonable control, including issues originating from third-party hosting providers, payment gateways, or internet service providers.

1.17 Limitation of Liability and Warranty Disclaimer

To the maximum extent permitted under applicable Indian law:

- Our services are provided on an “as is” and “as available” basis, without warranties of any kind, whether express or implied, including but not limited to warranties of merchantability, fitness for a particular purpose, or non-infringement;
- DropshipGuru's total aggregate liability arising out of or relating to any engagement shall not exceed the total fees actually paid by the Client for that specific service in the preceding three (3) months;
- DropshipGuru shall not be liable for any indirect, incidental, consequential, special, or punitive damages, including loss of profit, loss of business opportunity, or loss of data, even if advised of the possibility of such damages;

- Nothing in these Terms is intended to exclude or limit liability that cannot lawfully be excluded or limited under the Consumer Protection Act, 2019, or any other mandatory provision of Indian law.

1.18 Indemnification

You agree to indemnify, defend, and hold harmless DropshipGuru, its directors, employees, and agents from and against any claims, liabilities, damages, losses, and expenses (including reasonable legal fees) arising out of or in any way connected with: (a) your breach of these Terms; (b) your violation of any law or third-party rights (including intellectual property rights); (c) false, misleading, or fraudulent information or documents provided by you; or (d) your use or misuse of any third-party platform account set up or managed on your behalf.

1.19 Force Majeure

DropshipGuru shall not be held liable for any delay or failure in performance resulting from causes beyond our reasonable control, including but not limited to acts of God, natural disasters, pandemics, government action or regulation, internet or telecommunications failure, third-party platform outages or policy changes, strikes, or civil unrest. Performance obligations shall be suspended for the duration of such event, and timelines shall be extended accordingly.

1.20 Termination and Account Closure

Either party may terminate an ongoing engagement in accordance with the terms communicated at the time of Order Confirmation, or where no specific termination terms were agreed, upon written notice. DropshipGuru reserves the right to terminate immediately, without notice, in the circumstances described in Section 1.7 (Account Suspension and Right to Reject Service). Termination of an engagement does not affect any fees already earned for work performed up to the point of termination, and refund eligibility (if any) for the unused portion of a package shall be determined under our Refund & Cancellation Policy.

1.21 Digital Services, Custom Services, Training, and Webinars

Digital products, recorded training content, and digital downloads are deemed delivered upon being made accessible to you (e.g., via download link, login access, or email delivery), and are generally non-refundable once accessed, consistent with our Refund & Cancellation Policy. Live webinars and consultations are time-bound services; non-attendance at a scheduled session without prior notice does not entitle you to a free rescheduling or refund except as set out in that policy. Custom services (such as bespoke website development) follow the scope, milestones, and payment schedule set out in the applicable Service Agreement or Order Confirmation.

1.22 Severability

If any provision of these Terms is held to be invalid, illegal, or unenforceable by a court or authority of competent jurisdiction, that provision shall be severed, and the remaining provisions shall continue in full force and effect.

1.23 Entire Agreement

These Terms, together with the Privacy Policy, Refund & Cancellation Policy, and any applicable Order Confirmation or Service Agreement, constitute the entire agreement between you and DropshipGuru with respect to the subject matter herein, and supersede all prior understandings, whether written or oral.

1.24 Electronic Consent and Modification of Terms

You consent to enter into agreements and receive notices electronically, including via email, WhatsApp, and website notifications, and agree that such electronic communications satisfy any legal requirement that such communication be in writing. We may revise these Terms from time to time; the updated version will be posted on our website with a revised “Last Updated” date, and continued use of our services after such update constitutes acceptance of the revised Terms. Material changes affecting an ongoing engagement will, where reasonably practicable, also be communicated directly to active clients.

1.25 Governing Law, Jurisdiction, Dispute Resolution, and Arbitration

These Terms are governed by and construed in accordance with the laws of India. Subject to the arbitration clause below, the courts at [Insert City, e.g., your city of business registration] shall have exclusive jurisdiction over any dispute arising out of or in connection with these Terms.

Before initiating any formal proceeding, the parties agree to first attempt to resolve any dispute amicably through good-faith negotiation for a period of thirty (30) days from the date one party notifies the other in writing of the dispute.

If the dispute is not resolved through negotiation, it shall be referred to and finally resolved by arbitration in accordance with the Arbitration and Conciliation Act, 1996 (as amended). The arbitration shall be conducted by a sole arbitrator appointed mutually by the parties, seated at [Insert City], conducted in the English language, and the arbitral award shall be final and binding on both parties, subject to the limited grounds of challenge available under the Arbitration and Conciliation Act, 1996.